

In T 301/11 the board observed that requiring all parties to complete their relevant submissions during opposition proceedings meant that the moment in time when their case had to be complete was not determined by the procedural strategy chosen by them. According to Art. 12(4) RPBA 2007, admission of auxiliary requests into proceedings hinged on the question whether a party to appeal proceedings was in a position to make its submission earlier, and whether it could have been expected to do so under the circumstances (see also T 23/10, T 969/14).

As explained in T 1953/16, it was the established case law of the boards of appeal that the filing of new documents for the first time in the appeal proceedings required a sound and plausible reason relating to the specific case, in particular exceptional circumstances justifying the late filing of the documents in question. It followed that, in principle, documents could be admitted in the case of e.g. a normal reaction to a late turn of events in the (oral) opposition proceedings, an exceptional interpretation by the opposition division at a late stage or in the decision or evident non-allowability in view of the newly cited documents and/or objections. See also T 2696/16.

In T 1067/08 the board stated that appeal proceedings were not just an alternative way of dealing with and deciding upon an opposition and that parties to first-instance proceedings were not at liberty to bring about the shifting of their case to the second instance as they pleased, and so compel the board of appeal either to give a first ruling on the critical issues or to remit the case to the department of first instance. Conceding such freedom to a party (and/or to the department of first instance) would run counter to orderly and efficient proceedings. In effect, it would allow a kind of "forum shopping" which would jeopardise the proper distribution of functions between the departments of first instance and the boards of appeal and would be absolutely unacceptable for procedural economy generally. The board decided not to admit the main request into the appeal proceedings and stated that the exercise of the powers under Art. 12(4) RPBA 2007 might also be justified where a party's conduct had in effect prevented the department of first instance from giving a reasoned decision on the critical issues (see also T 936/09, T 495/10, T 2017/14, T 101/17).

In T 1873/11 the board rejected the appellant's contention that the use of "power" in Art. 12(4) RPBA 2007 (as opposed to "discretion" in Art. 13(1) RPBA 2007) prevented it from taking a decision at its discretion. Rather, "power" implied the very ability to decide not to admit requests, etc. in certain circumstances specified in the RPBA 2007.

Since, in fact, almost every claim request could have been presented before the department of first instance, the question within that context is whether the situation was such that the filing of this request should already have taken place at that stage (T 273/11, see also T 1162/11 and T 101/17). See also T 419/12, T 1848/12, T 569/14, T 1855/16.

In both R 11/11 and R 13/11 the Enlarged Board held that its case-law clearly showed that petition proceedings may not be used to review the exercise by a board of appeal of a discretionary power if that would involve an impermissible consideration of substantive issues. This has also been confirmed in the specific context of the discretion in Art. 12(4) RPBA 2007. See also R 4/13.

5.11.2 Relationship between Article 12(4) and Article 13 RPBA 2007

The board in T 1162/12 pointed out that it had been recognised in the case law that the fact that requests could have been presented at first instance was another criterion potentially to be considered when exercising discretion under Art. 13(1) RPBA 2007. This criterion was mentioned in Art. 12(4) RPBA 2007, and so in connection with the admissibility of requests filed at the start of appeal proceedings, but it was obvious that, if it could lead to the non-admission of those requests, it applied all the more so to late-filed ones (citing T 361/08 and T 144/09). See also T 143/14.

Likewise in the ex parte case T 133/12 the board considered it appropriate, when exercising its discretion under Art. 13(1) RPBA 2007, to take into account the provisions of Art. 12(4) RPBA 2007 (see also T 1587/07). The fact that the appellant had filed the requests after it filed the statement of grounds of appeal should not put the appellant in a better position than if it had filed them with the statement of grounds of appeal. See also T 2598/12.

5.11.3 Inter partes appeal procedure

- a) Documents, evidence and objections which could have been presented in the first-instance proceedings

In T 432/12 the decisive issue was whether there was a sound and plausible reason in this specific case for filing the documents only in the appeal proceedings. In principle, documents could be admitted in the case of e.g. a normal reaction to a late turn of events in the opposition (oral) proceedings, an exceptional interpretation by the opposition division at a late stage or in the decision, or evident non-allowability in view of the newly cited documents and/or objections, (see T 169/12). However, none of these exceptions applied to the case at hand. See also T 1953/16.

In T 724/08 the appellant had already raised a novelty objection in its opposition and therefore could have submitted the late-filed documents during the first-instance proceedings. It was immaterial whether the appellant had indeed only come across these Japanese patent specifications or the corresponding Patent Abstracts of Japan by chance later or whether said documents had genuinely been difficult to find, because it was not permissible to use these issues to slow down proceedings or gain an unfair advantage over the other party. In exercising this power, the board could make admitting a citation dependent on whether it is prima facie relevant but the board was not obliged to do so, because otherwise an opponent could easily submit a (highly) relevant citation for the first time in the statement setting out the grounds of appeal. See also T 1314/12, T 2471/13, T 1826/18, T 2696/16.

In T 62/15 the board stated that prima facie relevance was not mentioned in Art. 12(4) RPBA 2007 and was therefore not necessarily a criterion when considering the admittance of facts or evidence filed with the statement of grounds of appeal. The decisive issue was whether a fact or evidence could and should have been presented before the opposition division (citing T 724/08, T 432/12 and T 1314/12).

Citing T.724/08, the board in T.2734/16 stressed that it was the parties' responsibility to find all relevant prior-art documents and file them in time. It was up to them to take whatever measures and allocate whatever financial resources might be needed for this.

In T.876/05 the board rejected the opponent's argument that filing new documents a few days before the oral proceedings before the department of first instance was destined for failure and that it was therefore preferable for him not to file those documents until the appeal stage. The board held that Art. 10a(4) RPBA 2003 (Art. 12(4) RPBA 2007) put documents that could have been submitted before the department of first instance and documents which had been submitted but had not been admitted on an equal footing. Had these documents been filed in the opposition proceedings, the worst that could have happened was that they would have been regarded as inadmissible by the opposition division, so the consequences would have been no different than if they had not been filed. The board decided to consider only the documents that appeared immediately relevant (T.624/04).

In J.5/11 the Legal Board stated that the Office's duty to examine evidence of its own motion is more stringent in relation to evidence that is in the public domain, and the case for admitting such evidence when it is filed out of time by the parties is correspondingly stronger. The Office's duty to examine of its own motion evidence that is in the private sphere of the party concerned is obviously limited. If evidence of that type is not put forward in the proceedings before the first-instance department of the Office, it is difficult to see any compelling reason why the Board of Appeal should exercise its discretionary power under Art. 114(2) EPC and Art. 12(4) RPBA 2007 in such a way as to admit the evidence when it is filed with the grounds of appeal or a fortiori at a later stage of the appeal proceedings. That is particularly true when the first-instance department has expressly drawn the appellant's attention to the need for supporting evidence.

In T.2117/17 the board held, as regards the parties' duty to facilitate the due and swift conduct of inter partes proceedings, that particularly stringent requirements applied to a late assertion of public prior use, especially if the alleged prior use was their own. The board refused to admit the documents in question, which could have been filed at first instance, in particular because they were not highly relevant and for reasons of procedural economy (Art. 12(4) RPBA 2007).

In the following decisions too, the boards found that documents or objections could already have been filed during the opposition proceedings and exercised their discretion under Art. 12(4) RPBA 2007 not to admit them: T.2193/14 (documents filed with grounds of appeal to launch a substantiated attack on granted dependent claims for the first time), T.1715/08 (evidence filed with grounds of appeal), T.478/17 (Art. 123(2) EPC objection newly raised in grounds of appeal), T.1014/17 (additional prior art filed with grounds of appeal in response to main request already filed at oral proceedings before opposition division). However, see also T.1830/11, T.1554/16 and T.978/17, reported in chapter V.A.5.11.3 b) "Documents and evidence admitted – appropriate and timely reaction".

b) Documents and evidence admitted – appropriate and timely reaction

In T.1830/11 the board admitted evidence produced with the statement of grounds of appeal. It found that there were no provisions in the EPC which obliged the opponent to provide evidence against every possible fallback position defined in the dependent claims. Thus when amendments as in the case at issue were made to the claims during oral proceedings before the opposition division, the requirement under Art. 114(2) EPC that evidence be submitted "in due time" might, depending on the circumstances, arise only when the statement of grounds of appeal was filed.

In T.79/11, various sets of experimental data were submitted with the statement of grounds of appeal, clearly in response to the decision under appeal and with a view to supporting the appellant's (patentee's) arguments on inventive step. Although the data could already have been submitted at first instance, their later submission was not an unreasonable response to the reasons given for the decision under appeal.

In T.394/15 the opposition division had allowed a request filed for the first time one month before the oral proceedings at first instance. The board considered the documents filed in response with the statement of grounds of appeal to be a justified and timely reaction.

Other decisions in which the boards considered the filing of documents and evidence to be an appropriate and timely reaction include e.g. T.1554/16 (response to a combination of several claims and insertion of features from the description); T.978/17 (large number of possible claim combinations which the opponent could not reasonably be expected to cover in advance), T.2682/16 (comparative tests filed in response to the opposition division's decision finding, contrary to the opponent's line of argument, that an effect was achieved across the whole breadth of the claim), T.2182/17 (document presenting calculations considered to be a direct response to an argument of the opposition division in the contested decision), T.1711/16 (objection that claim 1 lacked novelty over D2 had been raised for the first time during the oral proceedings before the opposition division), T.247/17 (the opposition division's reversal of its opinion could not have been expected by the patent proprietor prior to the oral proceedings and so further evidence admitted).

c) Documents and evidence not admitted by the opposition division

In T.305/07 the appellant filed the experimental evidence which had not been admitted by the opposition division with its statement of the grounds of appeal. The board first stated that the claims at issue differed from those dealt with by the opposition division and in relation to which it considered the experimental evidence as irrelevant. However, the board came to the conclusion that none of the experimental evidence submitted with the statement of the grounds of appeal was relevant to the present case and therefore decided not to admit the experimental evidence.

In T.795/14, the appellant had filed with its statement of grounds of appeal tests which the opposition division had regarded as inadmissible for prima facie lack of relevance. However, they related to the evaluation of inventive step, which had been the focus of the opposition division's decision; moreover, the appellant (patent proprietor) had filed five

additional auxiliary requests and it could not be ruled out that they would become relevant to the evaluation of inventive step in one of those. The board saw no reason not to admit the tests.

The board in T 2102/08 considered that deciding under Art. 12(4) RPBA 2007 on whether to admit submissions already not admitted at first instance amounted to reviewing the discretionary decision taken there (here: by the opposition division). On this point, it cited G 7/93 (OJ 1994, 775), in which the Enlarged Board had held that a board should only overrule the way in which a department of first instance had exercised its discretion if the board concluded that it had done so in accordance with the wrong principles or in an unreasonable way. Another example of a decision applying the principles established in G 7/93 in this context is T 2182/17. On this point, see chapter V.A.3.4. "Review of first-instance discretionary decisions".

In T 971/11, however, the board did not fully agree with this finding. It held that a document which would have been admitted into appeal proceedings if it had been filed for the first time at the outset of those proceedings should not be held inadmissible for the sole reason that it had already been filed before the department of first instance (and not admitted).

d) Resubmission of objections withdrawn at the opposition stage

In T 172/17 the board held that Art. 12(4) RPBA 2007 also applied to objections that had been presented but subsequently withdrawn. However, in its view, not reiterating an objection discussed in respect of a higher-ranking request when asked to give comments in respect of a lower-ranking request could not be construed as a withdrawal of that objection.

e) Requests which could have been presented at first instance

According to established case law it is clear from the wording of Art. 12(4) RPBA 2007 that the board in inter partes proceedings has discretion over whether or not to admit requests which could have been presented by the patent proprietor in first-instance proceedings, but were not. The precondition of whether the request at issue could have been presented in the first-instance proceedings relates to the question of whether the presenting party could have been expected to present its request in the first-instance proceedings in the circumstances of the specific case (T 1538/10).

In T 240/04, the board refused to consider the third auxiliary request because the appellant could have submitted it before the opposition division. Indeed, it even ought to have done so because the amended independent claim concerned a technical problem which was only remotely related to the original one and presented facts not previously examined. To admit a new request in those circumstances would practically give patentees the opportunity to compel a remittal to the department of first instance as they pleased, which would not only put the opponent at a disadvantage but would also run counter to the principle of procedural economy.